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February 17, 2025

By: Murdock

An Act relating to the Conservation District Act; amending 27A O.S. 2021, Section 3-1-103, which relates to definitions; modifying definitions; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27A O.S. 2021, Section 3-1-103, is amended to read as follows:

Section 3-1-103. As used in the Conservation District Act:

1. "District" or "conservation district" means a governmental subdivision of this state, and a public body corporate and politic, organized in accordance with the provisions of the Conservation District Act, for the purposes, with the powers, and subject to the restrictions hereinafter set forth;

2. "Director" means a member of the governing body of a conservation district, elected or appointed in accordance with the provisions of the Conservation District Act;

3. "Commission" means the Oklahoma Conservation Commission;

4. "State" means the State of Oklahoma;

1 5. ~~"Agency of this state" includes~~ "Agency" or "agency of this
2 state" means the government of this state and any subdivision,
3 agency or instrumentality, whether corporate or otherwise, of the
4 government of this state;

5 6. "United States" or "agencies of the United States" includes
6 the United States of America, and any department, agency or
7 instrumentality of the federal government;

8 7. "Government" or "governmental" includes the government of
9 this state, the government of the United States, and any
10 subdivision, agency or instrumentality, corporate or otherwise, of
11 either of them;

12 8. "Due notice" which shall be in conformance with the
13 Administrative Procedures Act means notice published at least twice,
14 with an interval of at least seven (7) days between the two
15 publication dates, in a newspaper or other publication of general
16 circulation within the district, or, if no such publication of
17 general circulation is available, by posting at five conspicuous
18 places within the district, such posting to include, where possible,
19 posting at public places where it may be customary to post notices
20 concerning county or municipal affairs generally. At any hearing
21 held pursuant to such notice, at the time and place designated in
22 such notice, adjournment may be made from time to time without the
23 necessity of renewing such notice for such adjourned dates;

1 9. "District cooperator" means any person that has entered into
2 a cooperative agreement with a conservation district for the purpose
3 of protecting, conserving and practicing wise use of the renewable
4 natural resources under his or her control;

5 10. "Renewable natural resources", "natural resources" or
6 "resources" include land, soil, water, vegetation, trees, natural
7 beauty, scenery and open space;

8 11. "Conservation" includes conservation, development,
9 improvement, maintenance, management, preservation, restoration,
10 rehabilitation, protection and wise use of land, water and related
11 natural resources; the control and prevention of floodwater and
12 sediment damages; and the disposal of excess surface waters for the
13 public benefit and sustainable social and economic utilization;

14 12. ~~"Cost-Share~~ "Cost-share program" means the assumption by
15 the state of a proportional share of the cost of installing
16 conservation structures, conservation practices or best management
17 practices on lands for public and environmental benefits;

18 13. "Best management practices" means a control method or
19 combination of control methods that is determined to be the most
20 effective and practicable means of preventing soil loss from erosion
21 or reducing the amount of nonpoint source pollution from a given
22 land use;

23 14. "Nonpoint source" shall have the same meaning as such word
24 is defined by the Oklahoma Environmental Quality Act;

1 15. "Pollution" shall have the same meaning as such word is
2 defined by the Oklahoma Environmental Quality Act;

3 16. "Nonpoint source working group" means an advisory group
4 established by the Oklahoma Conservation Commission to provide input
5 into the state's nonpoint source management and assessment program
6 and is open to federal, state and local environmental agencies and
7 natural resource agencies and other interested groups;

8 17. "Watershed" means an area of land that drains to a given
9 point;

10 18. "Blue Thumb Program" means a nonpoint source educational
11 program emphasizing water quality education, including volunteer
12 monitoring;

13 19. "Soil science" means the science which:

14 a. is the study of physical, chemical, and biological
15 processes taking place in both naturally occurring and
16 reconstructed unconsolidated material formed by the
17 alteration of parent rock due to exposure at the
18 earth's surface, and

19 b. includes sampling, measuring, identification,
20 characterization, classification, and mapping of soil
21 materials and migration of water solute, air and other
22 gaseous components in the unsaturated portion of the
23 earth; and

24 20. "Soil scientist" means a person who:

- 1 a. has earned a baccalaureate or higher degree in a field
2 of soil science from an institution of higher
3 education which is accredited by a regional or
4 national accrediting agency, with a minimum of thirty
5 (30) semester hours or forty-five (45) quarter hours
6 of undergraduate work in a field of biological,
7 physical, or earth science with a minimum of fifteen
8 (15) semester hours of core soil science courses, and
9 b. has a specific and continuous record of related and
10 verifiable soil science work experience for two (2)
11 years. Publications in a soil science publication or
12 prior qualifications as an expert witness in
13 administrative or judicial proceeding, hearing or
14 trial shall be prima facie verification of experience
15 related to soil science.

16 SECTION 2. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
18 February 17, 2025 - DO PASS
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